Statutory Instrument 91 of 2026.

[CAP. 10:06

Civil Protection (Declaration of State of Disaster: Emergency Riverine Ecosystems Rehabilitation) Notice, 2026

PRELIMINARY

Section

Preamble

1. Title.
2. Definitions.
3. Declaration of State of Disaster.
4. Conferment of powers and duties on Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation and Agency.
5. Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation to Direct Remedial Work.
6. Provincial Committees on Riverine Ecosystems Rehabilitation.
7. Rights and Responsibilities of the Environmental Management Agency.
8. Rights and responsibilities of approved contractors.
9. Disbursements from the National Civil Protection Fund for purposes of this Notice.
10. Enforcement of Agency's directions.

FIRST SCHEDULE: Model (Standard) Terms of Reference (ToR) for River Bed Rehabilitation

SECOND SCHEDULE: Engagement of potential approved contractors.

THIRD SCHEDULE: Standard Operating Procedures.

Preamble

WHEREAS rivers are complex and fragile ecosystems, easily damaged but slow to recover naturally;

AND WHEREAS effective rehabilitation requires a multidisciplinary approach grounded in an understanding of river functions, processes, and catchment dynamics;

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

AND WHEREAS Government realises the need for a comprehensive framework that seeks to support and accelerate natural recovery, focusing on rivers significantly degraded by past riverbed and alluvial gold mining;

AND WHEREAS the implementation of such a framework is firmly anchored in the Constitution of Zimbabwe, which provides an overarching legal foundation for environmental protection, sustainable development, and the responsible management of public resources;

AND WHEREAS in particular section 73 of the Constitution guarantees every person the right to an environment that is not harmful to their health or well-being, obliging the State to take reasonable measures to prevent ecological degradation and to promote conservation; and section 13 requires that the State and all government institutions ensure the sustainable use and management of natural resources, while section 298 mandates transparency, accountability, and prudent management of public funds;

AND WHEREAS, guided by these constitutional principles, the river rehabilitation framework should promote environmental sustainability, transparency, inclusive stakeholder participation, and long-term ecological restoration, ensuring that communities are not negatively affected in the process;

AND WHEREAS, Government has resolved that the river rehabilitation framework shall be guided by the following principles—

(a) land degradation neutrality: riverine ecosystems rehabilitation should focus on improving overall ecosystem integrity and aquatic biodiversity;

(b) inclusivity: Engage with the interests and motivations of different stakeholder groups as early as possible;

(c) ecosystems approach: understand the connections between natural processes upstream and downstream: considering riparian areas, floodplains and the wider catchment and take it as a unit;

(d) root cause analysis: target measures at the root causes of degradation – not the symptoms – and at the scale at which the pressures exist;

(e) respect of natural fluvial processes: use minimal intervention wherever possible to reinstate natural processes so that rivers can recover by themselves;

(f) forward projections: evaluate restoration projects using robust monitoring techniques over long time scales to determine outcomes and inform future restoration;

AND WHEREAS the area of focus is largely the following major rivers and any other rivers that were degraded by past episodes of alluvial gold mining regimes, as mapped and documented by the Environmental Management Agency:

Mazowe and Murowodzi Rivers in Mashonaland Central;

Mazowe and Save Rivers in Mashonaland East provinces;

Angwa, Sanyati, Munyati and Mupfure Rivers in Mashonaland West Province;

Umzingwane and Insiza Rivers in Matabeleland South Province;

Manzimudaka, Mutebekwi, Sanyati, Mtshingwe in Midlands Province;

Mutare, Haroni and Nyamukwarara in Manicaland Province;

AND WHEREAS other areas of focus are in process of being identified and mapped by the Environmental Management Agency in addition to the rivers mentioned in the foregoing paragraph:

NOW, THEREFORE, His Excellency the President, in terms of section 27(1) of the Civil Protection Act [*Chapter 10:06*], hereby declares as follows—

Title

1. This notice may be cited as the Civil Protection (Declaration of State of Disaster: Emergency Riverine Ecosystems Rehabilitation) Notice, 2026.

Definitions

1. In this notice—

"Agency" means the Environment Management Agency established by section 9 of the Environmental Management Act [*Chapter 20:27*];

"affected province" means every province within the scope of this declaration referred to in section 3;

"approved contractors" means the companies engaged through the established procedure to rehabilitate degraded river ecosystems under the programme intitiated by this declaration;

"degradation", in relation to any river habitat, refers to the deterioration or reduction in the quality, functionality, and ecological integrity of the river environment due to human activities or natural processes;

"encountered minerals" refers to minerals discovered during the process of rehabilitation;

"Inter-ministerial Committee" means the Inter-ministerial Committee on Riverine Ecosystems Rehabilitation, being a Cabinet Committee constituted in terms of section 6(2);

"National Clearing House Committee" means the secretariat of the Working Party constituted in terms of section 6(6);

"polluter company or successor to or clone of a polluter company" means any company, or any successor to that company, or company which has any one or more directors or shareholders who or which were directors or shareholders of the first-mentioned company, which—

(a) at any time during or since 2012 was responsible in any way for degrading any river or public stream by riverbed and alluvial gold mining; and

(b) is an approved contractor in relation to that river or public stream;

"Working Party" refers to a committee established by the Cabinet of the Government of Zimbabwe through an Inter-ministerial Committee on Riverine Ecosystems

Rehabilitation for purposes of reviewing and recommending the final selection of companies to be engaged by the Government through the Inter-Ministerial Committee.

"riverine rehabilitation" means the return of the structure and function of a degraded riverine ecosystem to the closest achievable approximation of its natural (pre-impact) state.

Declaration of State of Disaster

3. As a result of the need to properly rehabilitate riverine ecosystems throughout Zimbabwe that have been adversely affected by legal and illegal alluvial mining activities, a state of **disaster exists throughout** Zimbabwe with effect from the promulgation of this declaration.

Conferment of powers and duties on Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation and Agency

4. It is hereby notified, in terms of section 38 of the Act, that the Minister is deemed—

(a) for the purpose of this declaration, to have conferred his powers in terms of the Act upon the Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation, including any power or duty conferred or imposed by or in terms of this Act upon the area civil protection officer for the civil protection area concerned;

(b) for the purpose of paragraph (a), authorised the Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation to confer upon the Agency, and every employee of the Agency designated by it for that purpose, any power or duty conferred or imposed upon an area civil protection officer or other person by or in terms of this Act.

Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation to Direct Remedial Work

5. (1) Notwithstanding anything contained in the Environmental

Management Act [*Chapter 20:27*] (including Statutory Instrument 188 of 2024) or the Mines and Minerals Act [*Chapter 21:05*], for the purposes of section 4, the prohibition contained in section 3 ("Prohibition of alluvial mining") of Statutory Instrument 188 of 2024 does not apply to a company that for the period of and, in accordance with this Declaration—

(a) is engaged in *bona fide* environmental rehabilitation of a river or public stream that has been degraded by alluvial mining activities; and

(b) has been authorised to undertake such rehabilitation by the Inter-Ministerial Committee in writing; and

(c) during the course of such rehabilitation activities, encounters or recovers minerals that were previously deposited or exposed as a result of prior alluvial mining operations.

(2) For the purpose of this section, there is hereby constituted a committee to be called the Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation (hereinafter referred to as "the Inter-Ministerial Committee"), jointly chaired by the Minister responsible for the Environmental Management Act and the Minister responsible for water resources, and consisting of the following Ministers or their authorised delegates—

(a) the Minister responsible for mining;

(b) the Minister responsible for home affairs;

(c) the Minister responsible for local government; and

(d) any other Minister, or the representative of any other entity, whose representation is deemed vital by the joint Chairpersons, and whom the joint Chairpersons shall, with the leave of Cabinet, invite to partake as a member of the Committee either on an *ad hoc* or permanent basis.

(3) The following is the mandate of the Inter-Ministerial Committee—

(a) to call for bids for riverine rehabilitation contracts within the frame of the "Model (Standard) Terms of

Reference for River Bed Rehabilitation" set forth in the First Schedule; and

(b) to approve riverine rehabilitation contracts; and

(c) to oversee the due implementation of approved riverine rehabilitation contracts, for which purposes it can demand a report from any approved riverine rehabilitation contractor (hereinafter referred to as an "approved contractor") as a condition of the continuance of the contract concerned; and

(d) process any grievance lodged with it in writing—

(i) by the Provincial Development Committee of a province, channelled through the Minister of State responsible for the province concerned; or

(ii) by a local authority; or

(iii) by an approved contractor;

(iv) by any other person or group of persons whose grievance is deemed by the Inter-Ministerial Committee to be pertinent to its oversight function;

(e) to make such specific reports to Cabinet as Cabinet may from time to time request.

(4) There shall be a technical subcommittee of the Inter-Ministerial Committee (hereinafter referred to as "the Working Party"), chaired by the Deputy Chief Secretary to Cabinet, and consisting of the following members or their authorised delegates—

(a) the permanent secretary of the Ministry responsible for environment; and

(b) the permanent secretary of the Ministry responsible for mining; and

(c) the permanent secretary of the Ministry responsible for home affairs; and

(d) the permanent secretary of the Ministry responsible for local government; and

(e) the permanent secretary of the Ministry responsible for water resources; and

(f) the permanent secretary of any other Ministry whose

representation is deemed vital by the joint Chairpersons of the Inter-Ministerial Committee, and whom the joint Chairpersons shall, with the leave of Cabinet, invite to partake as a member of the Committee either on an *ad hoc* or permanent basis; and

(g) the Commissioner-General of the Zimbabwe Republic Police, and representative each from the President's Department and the Defence Forces of Zimbabwe.

(5) The following is the mandate of the Working Party, which it shall exercise through its secretariat, called the National Clearing House (whose composition is provided for in subsection (6))—

(a) to receive and examine applications from potential contractors answering to any invitation by the Inter-Ministerial Committee in accordance with the Third Schedule for proposals to undertake riverine rehabilitation in a particular locality; and

(b) to shortlist suitable applicants for referral to the Inter-Ministerial Committee for final approval of contractors to undertake riverine rehabilitation in particular localities; and

(c) to monitor, through the Environmental Management Agency, the Zimbabwe National Water Authority and the Provincial Mining Directors, the undertaking of reverine rehabilitation by approved contractors.

(6) The National Riverine Rehabilitation Clearing House shall be composed of the following members—

(a) the permanent secretary of the Ministry responsible for environment and the permanent secretary of the Ministry responsible for mining, who shall be joint chairpersons of the Clearing House; and

(b) the Director-General of the Agency, or his or her authorised delegate; and

(c) the Chief Executive Officer of the Zimbabwe National Water Authority, or his or her authorised delegate.

Provincial Committees on Riverine Ecosystems Rehabilitation

6. (1) There shall be in each province a Provincial Committee on Riverine Ecosystems Rehabilitation ("Provincial Committee")chaired by the Minister of State of the Province concerned, consisting of the following members or their authorised delegates—

(a) the secretary for provincial affairs and devolution for that province; and

(b) the provincial heads of the Agency, ZINWA, the Zimbabwe Republic Police, the Ministry responsible for local government and the Ministry responsible for water resources, for that province;

(c) the Provincial Mining Director for that province; and

(d) the provincial head of any other Ministry or statutory corporation or statutory body whose representation is deemed vital by the Minister of State of the Province concerned, who shall partake as a member of the Committee either on an *ad hoc* or permanent basis.

(2) The following is the mandate of each Provincial Committee—

(a) together with the Agency, to ensure compliance with site-specific rehabilitation plans by contractors:

Provided that, in the case of any dispute, the final arbiter of whether a site-specific rehabilitation plan has been complied with shall be the Agency;

and

(b) together with the Agency, to ensure compliance by the District Development Coordinator of each district affected by riverine rehabilitation with any directives of the Provincial Committee; and

(c) to receive and promptly comply with such directives as the Inter-Ministerial Committee may issue to the provincial committee concerned or to provincial committees in general; and

(d) to provide reports on the progress of riverine rehabilitation

at the request of the Working Party; and

(e) to transmit to the Working Party any applications from potential contractors answering to any invitation by the Inter-Ministerial Committee in accordance with the Third Schedule for proposals to undertake riverine rehabilitation in a particular locality within the province; and

(f) through the District Development Coordinator of each district affected by riverine rehabilitation, continually monitor and evaluate the progress of ruverine rehabilitation in each affected district.

(3) There shall be a technical subcommittee of the Provincial Committee (hereinafter referred to as "the Provincial Working Party"), chaired by any provincial official delegated by the Minister of State of the Province concerned to deputise for him or her, and consisting of the same members at provincial level as the membership of the national Working Party referred to in section 5(4), and whose mandate shall be the same as that (at the provincial level) which is specified for the national Working Party in section 5(5).

(4) The reference to the National Riverine Rehabilitation Clearing House in section 5(6) shall, for the purposes of this section, be a reference to the Provincial Riverine Rehabilitation Clearing House, and shall be composed of the following members—

(a) a representative at provincial level of the permanent secretary of the Ministry responsible for environment and a representative at provincial level of the permanent secretary of the Ministry responsible for mining, who shall be joint chairpersons of the Clearing House; and

(b) a representative at provincial level of the Director-General of the Agency; and

(c) a representative at provincial level of the Chief Executive Officer of the Zimbabwe National Water Authority.

Rights and Responsibilities of the Environmental Management Agency

7. (1) The Agency shall supervise the undertaking by approved contractors of riverine rehabilitation in line with their approved rehabilitation plans.

(2) The Agency shall maintain a register of all approved contractors, which shall contain—

(a) the name and address of the authorised company;

(b) the location and extent of the rehabilitation area;

(c) the duration of the contract for riverine rehabilitation;

(d) a summary of the approved riverine rehabilitation plan; and

(e) the value of any minerals reported as recovered during the riverine rehabilitation.

(3) The Agency may, on its own initiative with the written leave of the Inter-Ministerial Committee, or at the request of the Inter-Ministerial Committee, by notice in writing to the approved contractor, prohibit the contractor from undertaking any reverine rehabilitation or any other activity in or around the rehabilitation area if—

(a) the contractor fails to comply with any condition imposed under this Notice or with the approved rehabilitation plan; or

(b) the contractor engages in activities that exceed the scope of the approved rehabilitation plan; or

(c) the Agency is satisfied that the continuation of the activities in or around the rehabilitation area poses a threat to the environment or the public interest.

(4) A contractor aggrieved by a decision of the Agency under subsection (3) may, within thirty days of receipt of the notice, appeal to the Inter-Ministerial Committee, whose decision shall be final.

(5) In addition to such reimbursement as the Agency may be entitled to under section 25 of the Act from the National Civil Protection Fund, the Agency shall be entitled, in terms of section 40 of the Act, to make good (by action in any court of competent jurisdiction) the expenses of the Agency directly incurred as a result of carrying any remedial work occasioned by any approved contractor that has not complied with the terms of its rehabilitation contract.

Rights and responsibilities of approved contractors

8. (1) Any minerals recovered by an approved contractor in terms

of this declaration shall be reported to the Ministry responsible for mines within seven days of recovery, and the Ministry may, where necessary, cause an inspection to verify the quantity and value of such minerals for royalty purposes.

(2) Nothing in this section shall be construed as—

(a) authorising any person to conduct alluvial mining for the primary purpose of mineral extraction;

(b) exempting any person from compliance with any other enactment governing environmental management or mining activities; or

(c) affecting the rights of the State in any minerals not recovered during *bona fide* rehabilitation activities.

(3) The standard operating procedures set out in the Third Schedule shall govern the terms and conditions applicable to an authorised company carrying out rehabilitation under this section:

Provided that, in the application of the standard operating procedure, the Agency may, having regard to the different environmental factors prevailing in each province, adapt such requirements as may be necessary.

(4) An approved contractor that recovers minerals during rehabilitation activities in terms of this declaration shall—

(a) be entitled to retain and dispose of such minerals as the lawful owner thereof;

(b) subject to paragraph (c), not be required to obtain a mining title, licence, or permit under the Mines and Minerals Act [*Chapter 21:05*] other than a mineral recovery permit issued in accordance with paragraph 10 of the Third Schedule in respect of any minerals encountered in the course of rehabilitation; and

(c) pay royalty to the State on the value of any minerals so recovered at the rate prescribed in terms of the Mines and Minerals Act [*Chapter 23:04*] and Chapter VII of the Finance Act [*Chapter 24:31*].

Disbursements from the National Civil Protection Fund for purposes of this Declaration

9. To enable the Minister responsible for the principal Act to disburse any moneys in connection with this declaration, and in particular in connection with section 9 ("Special provisions for certain approved contractors") of this declaration, the scheme of Riverine Ecosystems Rehabilitation implemented by the Inter-Ministerial Committee shall be deemed to be a "scheme" for the purposes of section 32 ("Application of Fund") (c) of the principal Act.

Enforcement of Agency's directions

10. To avoid doubt, any direction of the Agency made to another person for the purposes of this declaration is an order for the purpose of section 43 ("Failure to comply with order or instruction") of the Act.

FIRST SCHEDULE (*Section 5(3)(a)*)

MODEL (STANDARD) TERMS OF REFERENCE (TOR) FOR RIVER BED REHABILITATION

RIVER BED REHABILITATION PROJECT: ENVIRONMENTAL RESTORATION OF […..RIVER NAME]

PART I: THE REHABILITATION PROJECT

Background

1. The […..River Name] has been damaged by gold panning and river bed mining, leading to environmental degradation and loss of biodiversity.

Objectives

2. The objective is to restore the (…River Name's) ecological continuity, improve biodiversity and promote sustainable development with a view to achieve the following main goals:

(a) Ecological Restoration: Improve the river's natural aquatic habitat and ecosystem, restore fish migration and enhance biodiversity and promote aquatic life;

(b) Sediment Management: Manage sediment transport, restore natural river dynamics, improve water quality and reduce pollution;

(c) Recreational Quality: create accessible and attractive spaces for recreation and leisure to support local communities and livelihoods;

(d) Stakeholder Engagement: involve local communities and stakeholders in the decision-making process.

Scope of Works

3. (1) Environmental Assessment and Surveys:

(a) conduct baseline surveys to assess the river's ecological health, water quality, and biodiversity;

(b) identify areas of high conservation value and priority rehabilitation sites;

(c) develop a detailed inventory of invasive species, debris and pollutants.

(2) Rehabilitation Plan Development:

(a) develop a comprehensive rehabilitation plan outlining goals, objectives, and strategies for restoring the river ecosystem;

(b) identify and prioritise rehabilitation activities, including:

(c) removal of invasive species and debris;

(d) restoration of natural habitats (e.g., replanting native vegetation, reintroducing native species);

(e) improvement of water quality and reduction of pollution;

(f) establish timelines, budgets, and resource allocation for rehabilitation activities;

(3) Removal of Invasive Species and Debris:

(a) remove invasive plant and animal species, including those causing harm to the ecosystem;

(b) clear debris, waste, and pollutants from the river and its banks;

(c) dispose of removed materials in an environmentally responsible manner.

(4) Restoration of Natural Habitats:

(a) replant native vegetation, including trees, shrubs, and aquatic plants;

(b) reintroduce native aquatic species, such as fish and invertebrates;

(c) restore natural riverbank morphology and stabilise eroded areas.

(5) Water Quality Improvement:

(a) implement measures to reduce pollution, such as:

(b) installing wastewater treatment systems or improving existing ones;

(c) implementing best management practices for agricultural and industrial activities;

(d) educating local communities on water quality conservation.

(6) Monitoring and Evaluation:

(a) establish a monitoring program to track progress and effectiveness of rehabilitation efforts;

(b) conduct regular water quality testing and biodiversity surveys;

(c) evaluate and adapt the rehabilitation plan as needed.

(7) Community Engagement and Education:

(a) engage with local communities, stakeholders, and indigenous groups to raise awareness and build support for the rehabilitation project;

(b) develop and implement education and outreach programs to promote environmental conservation and sustainable practices.

(8) Implementation and Maintenance:

(a) implement rehabilitation activities according to the plan and schedule;

(b) provide ongoing maintenance and monitoring to ensure long-term success of the rehabilitation efforts.

Rehabilitation activities

4. (1) Riverbank Stabilisation:

(a) plant native vegetation to prevent erosion;

(b) use geotextiles or bioengineering techniques to stabilise slopes;

(c) construct retaining walls or gabions if necessary.

(2) Channel Restoration:

(a) remove invasive species and debris from the river channel;

(b) restore natural flow patterns and meanders;

(c) reintroduce natural substrates (e.g., gravel, sand).

(3) Habitat Creation:

(a) create artificial habitats like pools, riffles, or wetlands;

(b) reintroduce native aquatic plants and animals;

(c) install fish-friendly structures (e.g., logs, boulders).

(4) Water Quality Improvement:

(a) implement measures to reduce pollution (e.g., wetlands, filters);

(b) improve wastewater treatment and management;

(c) promote sustainable agricultural practices.

(5) Invasive Species Management:

(a) remove invasive plants and animals;

(b) implement control measures (e.g., biological, chemical);

(c) monitor and adapt management strategies.

(6) Community Engagement:

(a) involve local communities in rehabilitation efforts;

(b) provide education and training on sustainable practices;

(c) support alternative livelihoods (e.g., eco-tourism, sustainable fishing).

(7) Expected Outcomes:

(a) improved water quality and reduced pollution;

(b) restored habitats and biodiversity;

(c) enhanced ecosystem services and community benefits.

(8) Deliverables:

(a) rehabilitation plan and implementation schedule;

(b) progress reports and monitoring data;

(c) final evaluation report.

PART II: COMPANY EXPERIENCE AND TECHNICAL AND FINANCIAL REQUIREMENTS:

Company Experience and Financial Capacity

5. For river bed rehabilitation projects in Zimbabwe, companies should have:

(a) technical expertise in river rehabilitation, ecology, hydrology, and environmental management;

(b) local knowledge and experience working in Zimbabwe's environmental and regulatory context;

(c) financial capacity to undertake the project and meet contractual obligations.

Company technical requirements

6. (1) Regarding their general technical requirements, companies should have:

(a) registration with relevant authorities (e.g., Environmental Management Agency, Zimbabwe);

(b) ISO 14001 certification or equivalent environmental management systems;

(c) experience with community engagement and stakeholder consultation;

(d) partnerships with local organisations or experts;

(e) classified as a contractor in Zimbabwe (e.g., Category A or B for environmental works);

(f) registered with the Zimbabwe Revenue Authority (ZIMRA) and other relevant authorities;

(g) compliance with Zimbabwe's environmental regulations and laws;

(h) experience with multi-disciplinary teams and stakeholder engagement;

(i) proven track record of successful project delivery.

(2) Company's Key Experts:

(a) project manager;

(b) ecologist/biologist:

(c) hydrologist/water quality expert; and

(d) environmental engineer; and

(e) GIS and Remote Sensing Specialist.

(3) The Inter-Ministerial Committee will award extra weighting for being selected to any Company—

(a) whose key experts include a Community Engagement Specialist, having the following qualifications:

(i) Degree in Social Sciences, Community Development, or related field;

(ii) 3+ years of experience in community engagement and stakeholder consultation;

(iii) experience working with local communities and indigenous groups;

and

(b) whose key experts mentioned in subparagraph (2) (a) to (e) have the following additional or specific qualifications:

(i) project manager:

A. degree in Environmental Science, Ecology, or related field;

B. 5+ years of experience in environmental project management;

C. experience with river rehabilitation projects;

D. strong leadership and communication skills.

(ii) Ecologist/Biologist:

A. degree in Ecology, Biology, or related field;

B. 3+ years of experience in aquatic ecology and biodiversity conservation;

C. experience with river ecosystems and species identification.

(iii) Hydrologist/Water Quality Expert:

A. degree in Hydrology, Water Resources, or related field;

B. 3+ years of experience in water quality management;

C. experience with river systems and water quality modeling.

(iv) Environmental Engineer:

A. degree in Environmental Engineering or related field;

B. 3+ years of experience in environmental engineering design;

C. experience with river rehabilitation projects.

(v) GIS and Remote Sensing Specialist:

A. degree in GIS, Remote Sensing, or related field;

B. 2+ years of experience in spatial analysis and mapping;

C. experience with environmental applications.

Company key equipment

7. (1) Company's key equipment that may be used to carry out the river bed rehabilitation project:

(a) Heavy Equipment:

(i) excavators: for removing invasive species, debris, and reshaping riverbanks;

(ii) bulldozers: for grading and stabilizing riverbanks;

(iii) dump trucks: for transporting materials and debris;

(iv) cranes: for lifting and placing large rocks or structures.

(b) Specialised Equipment:

(i) dredging equipment: for removing sediment and debris from the river channel;

(ii) water quality monitoring equipment: for testing water quality parameters (e.g., pH, turbidity, nutrient levels);

(iii) geotechnical equipment: for stabilizing riverbanks and preventing erosion;

(iv) planting equipment: for replanting native vegetation (e.g., tree planters, seed drills).

(c) Survey and Monitoring Equipment:

(i) GPS and surveying equipment: for mapping and monitoring river morphology;

(ii) water level and flow meters: for monitoring water levels and flow rates;

(iii) benthic sampling equipment: for monitoring aquatic life and habitat quality;

(iv) camera traps and monitoring systems: for monitoring wildlife and habitat changes.

(2) Some specific technologies used in Zimbabwe include:

(a) drone technology: for aerial surveys and monitoring;

(b) GIS and remote sensing software: for spatial analysis and mapping.

(3) Community Engagement and Education Equipment:

(a) audio-visual equipment: for presentations and education sessions;

(b) print materials and signage: for awareness and education campaigns;

(c) community engagement tools: for stakeholder consultation and participation (e.g., flipcharts, sticky notes).

(4) Safety Equipment:

(a) personal protective equipment (PPE): for workers (e.g., hard hats, gloves, life jackets);

(b) first aid kits: for emergency response.

(5) Emergency response equipment: for spill response and other emergencies.

SECOND SCHEDULE (*Section 6(5)(a)*)

ENGAGEMENT OF POTENTIAL APPROVED CONTRACTORS

PART I

ADMINISTRATIVE ARRANGEMENT

Interpretation

1. In this Schedule—

"company" or "rehabilitation company" means a company engaged in terms of this Schedule as a contractor for the purposes of the programme;

"programme" means the programme to rehabilitate degraded river ecosystems under this programme.

Engagement of rehabilitation companies

2. The companies to be engaged as contractors for purposes of this programme shall be required to meet the following specifications—

(a) (legal compliance) the company must have no previous record of any environmental violations related to alluvial mining and rehabilitation; in addition, the company should be compliant to ZIMRA requirements for its operations;

(b) (technical capacity) the company must demonstrate technical capacity, expertise, and knowledge of river ecosystem rehabilitation, with a proven record and a multi-disciplinary team, including the following compulsory disciplines: hydrology, civil engineering (water preferred), ecology, environment, and social ecology;

(c) (equipment availability) the company shall demonstrate ownership of, or lawful access to, the equipment required to undertake the

rehabilitation works, and such equipment shall be subject to verification on site; where equipment is hired from the State or a State-controlled entity, the company shall acknowledge that such equipment may be subject to repossession in the event of failure to perform its contractual obligations. Repossession shall be executed by the contracting authority or its duly authorised officer, following written notice to the company specifying the breach and providing a period of fourteen (14) days to remedy the breach, failing which the contracting authority may take possession of the equipment or enforce repossession;

(d) (Financial Capacity) the company shall have a proven financial capacity to fund the rehabilitation works and any other associated costs. A full financial proposal to undertake the project is a prerequisite.

Engagement of rehabilitation companies

3. (1) The Chair of the Inter-Ministerial Committee on Riverine Ecosystems Rehabilitation shall issue a call for Expression of Interest (EoI) with directions on how the applications shall be submitted and the applicable river and specific areas to be rehabilitated. Applications shall be made in the manner prescribed by regulations under the Act, to the National Clearing House Committee, where an initial screening shall be done. The EoI shall include the following—

(a) a company profile, detailing the company's shareholding or ownership structure. and the directors of the company, supported by documentary proof; and

(b) a technical proposal consisting of one or more proposed site-specific rehabilitation management plans; and

(c) a method statement outlining the methodology to be employed in order to rehabilitate/restore the river in question to its almost natural state;

(d) documentation in proof of financial capacity, showing the company's financial performance, auditable statements and projected return on investments, if any;

(2) The applications shall be subjected to a screening process to check for—

(a) completeness; and

(b) legal compliance; and

(c) minimum technical requirements; and

(d) financial capacity.

(3) Bids found to be non-compliant upon screening shall be disqualified at this stage.

Technical evaluation

4. Bids shall be evaluated on—

(a) methodology; and

(b) environmental and social safeguards; and

(c) capacity with respect to financial resources;

(d) technical capacity and experience.

Site due diligence

5. Shortlisted rehabilitation companies shall undergo—

(a) physical verification of the extent of damage to the proposed sites; and

(b) verification of equipment to be used; and

(c) financial checks by reference to bank statements and other documents; and

(d) inspection (whether on-site or off-site) of previous projects undertaken by the company in question.

THIRD SCHEDULE (*Section 6(8)*)

STANDARD OPERATING PROCEDURES

Interpretation

1. In this Schedule—

"general rehabilitation permit" means the permit issued by the Agency that is referred to in paragraphs 2(4), 4(1) and (12)(b).

Rehabilitation Contract Award and Management

2. (1) The National Clearing House Committee shall validate the technical suitability of shortlisted firms and submit, through the Working Party. its recommendations on the short-list to the Inter-Ministerial Committee. The Inter-Ministerial Committee shall review recommendations for policy alignment and coordination.

(2) The Inter-Ministerial Committee shall formally award contracts (which shall be signed jointly by both chairpersons thereof or by either of them), ensuring that all legal, technical, and financial requirements are met.

(3) Any party aggrieved by not being shortlisted, or by an award or non-award of a contract, may appeal to the Inter-Ministerial Committee within twenty-eight (28) days of being notified in writing of the decision not to shortlist it or not to award it a contract. The aggrieved party shall make such an appeal in writing, stating the nature of the grievance, the parties involved, and the remedy being sought, upon payment of the fee prescribed by regulations under the Act.

Such an appeal shall be considered or heard by the Committee and a decision made within a reasonable time.

(4) The Agency shall issue a general rehabilitation permit as soon possible to every company that is awarded a contract, and such permit, together with the environmental management plan of the engaged rehabilitation companies shall deemed to form part of the contract terms that the companies must comply with.

Rehabilitation contract duration

3. (1) The rehabilitation contract shall specify the duration of the rehabilitation (consistently with the duration of this declaration and any renewal thereof), taking into consideration seasonal regimes that are key to the rehabilitation of sustainable river ecosystems.

(2) For the avoidance of doubt, rehabilitation shall not take place from November to April of each year or in rivers or parts thereof that are in full spate.

(3) Each contract shall have a defined, specific stretch of the river to be covered within a specific time period, guided by a site-specific rehabilitation plan, which shall form the basis for compliance, monitoring, and evaluation.

(4) The site-specific rehabilitation plan shall include backfilling of pits, removal of silt from the river system, realignment of the river system, and stabilisation of riverbanks using appropriate and approved methodologies, including stone checks, gabion structures, and erosion stabilisation nets.

(5) Appropriate revegetation and enviro-greening, as informed by the riverine baseline assessment, shall be done on the rehabilitated sites.

(6) Any processing plants, slimes dams, or settling ponds shall not be constructed within 500 metres from the river bank or the highest flood level of any water course.

(7) No process water from rehabilitation shall be discharged into the river system.

(8) The removal of silt on the river system shall not go as deep as the original riverbed and shall not affect the banks of the river.

(9) Regular sampling of upstream versus downstream water quality monitoring for Total Suspended Solids (TSS), pH levels, and heavy metal concentrations must be conducted, as specified in the site-specific rehabilitation plan or in the absence of provisions bearing on the same, as directed from time to time by the Director-General of the Agency or the Chief Executive Officer of the Zimbabwe National Water Authority.

(10) All waste generated during the rehabilitation process must be managed in accordance with the hierarchy of waste disposal to ensure zero-harm to the riparian ecosystem.

(11) All non-hazardous waste (for example, used geotextiles, scrap metal, or domestic refuse) must be transported to a licensed, off-site municipal or private landfill facility. On-site burial is strictly prohibited.

(12) The rehabilitation works shall include post-closure activities as provided for in the site-specific rehabilitation plan or, in the absence of provisions bearing on the same, as directed from time to time by the Director-General of the Agency or the Chief Executive Officer of the Zimbabwe National Water Authority

(13) To verify that the site has been successfully restored to a "non-mining threat" status, a final technical audit is required as provided for in the site-specific rehabilitation plan or, in the absence of provisions bearing on the same, as directed by the Director-General.

(14) A joint site inspection must be conducted pre-rehabilitation and post-rehabilitation, involving the Provincial Mining Director, Zimbabwe National Water Authority (ZINWA) and the Environmental Management Agency (EMA).

(15) The post-rehabilitation inspection aims to confirm the removal of all mining-related apparatus, the complete filling of voids, and the stabilisation of embankments.

(16) Only upon the receipt of a written certification of compliance from EMA and a quittance certificate from the Ministry of Mines and Mining Development shall the contractor be cleared of environmental liability at the specific site.

(17) Rehabilitation contracts shall be renewed only upon proof of rehabilitation performance and compliance.

Encountered Minerals

4. (1) Notwithstanding the possession of a general rehabilitation permit, no mineral recovery shall be conducted without a specific Mineral Recovery Permit (MRP) issued by the Provincial Mining Director (PMD) after approval by the Minister responsible for mining.

(2) If a rehabilitating company encounters any mineral during the rehabilitation process, the company shall secure the site to prevent unauthorised access or illegal extraction.

(3) The specific area of discovery must be secured by the site manager or supervisor. Access must be restricted to prevent unauthorised handling or theft of the concentrated material.

(4) If the encountered mineral is gold, the company in question shall, through the Provincial Mining Director responsible for the district to which the permit relates, apply for a Mineral Recovery Permit (MRP) through the Ministry of Mines and Mining Development.

(5) The Company shall comply with all the requirements of the Mineral Recovery Permit.

(6) The removal, recovery, or transport of any such encountered and recovered mineral must be conducted under the direct supervision of the appropriate regulatory authorities, ensuring the gold is accounted for in accordance with the Mines and Minerals Act.

(7) Monthly returns must be submitted by the company holding a Mineral Recovery Permit to the Provincial Mining Director (PMD), detailing the quantity of mineral output or weight in grams/kilograms.